SUPREME COURT OF THE UNITED STATES

No. 25A1197 (24–109 and 24–110)

PHILLIP CALLAIS, ET AL., APPLICANTS *v.*
LOUISIANA, ET AL.

ON APPLICATION TO ISSUE THE JUDGMENT FORTHWITH

[May 4, 2026]

JUSTICE JACKSON, dissenting.

The Court's decision in these cases has spawned chaos in the State of Louisiana.

Louisiana's primary elections were scheduled to take place on May 16, 2026. Accordingly, the State mailed ballots to overseas and military voters on April 1, and to other voters who qualified to vote by mail on April 26. By April 29—the date on which the Court released its decision holding that Louisiana's current congressional map is an unconstitutional gerrymander, see *Louisiana* v. *Callais*, 608 U. S. ___ (2026)—some Louisiana voters had already mailed back their filled-in ballots.

The very next day, Louisiana's Governor declared that *Callais* "effectively revives" the lower court's prior injunction against the current electoral map, and suspended the ongoing primary elections for seats in the U. S. House of Representatives. La. Exec. Order No. JML 26–038 (Apr. 30, 2026). For its part, the three-judge court below declared that, due to *Callais*, "Louisiana will be afforded the opportunity to enact a Constitutionally compliant map" right now—for the election in progress—and ordered the State to file a brief "outlining how [it] intends to comply with" the *Callais* decision within three days. Order in *Callais* v. *Landry*, No. 24–cv–122 (WD La.), ECF Doc. 261, p. 1. Apparently, neither the Governor nor the three-judge court viewed themselves as limited by the fact that this Court had

yet to issue its certified judgment in these cases; in the ordinary course, we do not do so until at least 32 days after the opinion is released. See this Court's Rule 45.3.[1]

So, new litigation followed. A candidate and Louisiana voters who have already submitted their ballots filed suits against the Governor and the Secretary of State, asserting that, whatever might happen to Louisiana's congressional map in the future, *this* election is already underway and must continue pursuant to the current maps. See, *e.g.*, Complaint in *Garcia* v. *Landry*, No. 26–cv–471 (MD La.), ECF Doc. 1; Emergency Petition for Injunctive Relief in *National Council of Jewish Women* v. *Landry*, No. C–777814 (La. 19th Jud. Dist., May 1, 2026). Meanwhile, to facilitate Louisiana's midstream redistricting rush, appellees now ask us to expedite release of the certified judgment in *Callais*. Application 2–3.

These post-*Callais* developments have a strong political undercurrent. Louisiana's hurried response to the *Callais* decision unfolds in the midst of an ongoing statewide election, against the backdrop of a pitched redistricting battle among state governments that appear to be acting as proxies for their favored political parties.[2] And as always, the Court has a choice. By my count, we have granted an application to issue the judgment forthwith over a party's

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[1] In today's order, the Court offers that "Louisiana does not oppose [the *Callais* plaintiffs'] application," suggesting that this is a point in favor of the Court's decision to grant the request. *Ante,* at 1 (*per curiam*). But the reason that Louisiana "takes no position on the *Callais* plaintiffs' request" is that neither the Governor nor the Legislature views the State's ability to "immediately produce a constitutional map and electoral process" as "contingent upon when this Court transmits its opinion and judgment." Louisiana's Response to Application 1–2.

[2] See D. Lieb, A Redistricting Battle Among States Has Reshaped the US House Map Ahead of the Midterm Election, Associated Press, Apr. 30, 2026, https://apnews.com/article/redistricting-congress-gerrymander-trump-4c5c98bec6af054d13b6275b6917bc86 (archived at https://perma.cc/RVP9–MN3W).

objection only twice in the last 25 years. See *Whole Woman's Health* v. *Jackson*, No. 21A220, 2021 WL 5931622 (Dec. 16, 2021); Order in *Adoptive Couple* v. *Baby Girl*, No. 13A7, etc. (June 28, 2013). To avoid the appearance of partiality here, we could, as per usual, opt to stay on the sidelines and take no position by applying our default procedures.

But, today, the Court chooses the opposite. Not content to have decided the law, it now takes steps to influence its implementation. The Court's decision to buck our usual practice under Rule 45.3 and issue the judgment forthwith is tantamount to an approval of Louisiana's rush to pause the ongoing election in order to pass a new map.[3]

And make no mistake: That course of action does not follow from the *Callais* decision itself. The question whether our decision should affect the map to be used in the *ongoing* primaries raises a host of legal and political questions that are entirely independent of the issue in *Callais*. Among the legal ones, there is the Court's previous insistence that—even at the cost of letting partisan gamesmanship corrupt our democracy, see *Rucho* v. *Common Cause*, 588 U. S. 684, 721 (2019) (KAGAN, J., dissenting)—courts should not "'risk assuming political . . . responsibility for a [partisan map-drawing] process that often produces ill will and distrust,'"

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[3] Contrary to JUSTICE ALITO's charges, my conclusion here does not "require that the 2026 congressional elections in Louisiana be held under a map that has been held to be unconstitutional." *Ante,* at 1 (opinion concurring in grant of application to issue judgment forthwith). But he is correct to observe that I am neither "claim[ing] that it is now too late for the state legislature or the District Court to adopt a new map that complies with the Constitution," nor "assert[ing] that it is not feasible for the elections to be held under such a map." *Id.*, at 1–2. Indeed, my preference is for the Court to stay out of all this, and the best way to do that is to stick with our default procedures. It is the majority that opts to do otherwise, thereby seeming to endorse Louisiana's efforts to change its congressional map during this primary election, before the pending lawsuits have a chance to play out.

id., at 704 (majority opinion). There is also the so-called *Purcell* principle, which we invoked only five months ago to chide a federal district court for "improperly insert[ing] itself into an active primary campaign." *Abbott* v. *League of United Latin American Citizens*, 607 U. S. ___, ___ (2025) (*per curiam*) (slip op., at 2).

The Court unshackles itself from both constraints today and dives into the fray. And just like that, those principles give way to power. Because this abandon is unwarranted and unwise, respectfully, I dissent.